Affidavit – Family law and child support proceedings

Federal Circuit and Family Court of Australia (Family Law) Rules 2021 – RULE **8.15**

Filed in:

- ☐ Federal Circuit and Family Court of Australia (Division 1)
- ☒ Federal Circuit and Family Court of Australia (Division 2)
- ☐ Other (specify) ____

Type of proceedings:

- ☒ Family law proceedings
- ☐ Other (specify) _____

Filed on behalf of:

Full name: Joe Blogs

COURT USE ONLY

Client ID _____

File number BRG 1234/2026

Filed at

Filed on

Court location _____

Court date _____

Name of person swearing/affirming this affidavit:

Joe Blogs

Date of swearing/affirming 20/02/2026

Part A About the parties

APPLICANT 1

Family name (as used now)

Blogs

Given names (as required)

Jill

RESPONDENT 1

Family name (as used now)

Blogs

Given names (as required)

Joe

APPLICANT 2

Family name (as used now)

Given names (as required)

RESPONDENT 2

Family name (as used now)

Given names (as required)

What is the contact address (address for service) in Australia for the party filing this affidavit?

You do not have to give your residential address. You may give another address at which you are satisfied that you will receive documents. If you give a lawyer's address, include the name of the law firm. You **must** also give an email address.

1 Family St

State Qld Postcode 4000

Phone 0422222222

Lawyer's code Mr O TherLawyer

Email joe@isaidusaid.com

Part B About the independent children's lawyer (if appointed)

Independent children's lawyer family name	Given names

Firm name

Part C About you (the deponent)

Family name (as used now)	Given names
Blogs	Joe

Gender

☒ Male ☐ Female ☐ X

Usual occupation (if applicable)

CEO

What is your address?

You do not have to give your residential address if you are concerned about your safety. You may give another address at which you are satisfied that you will receive documents.

1 Family Law St

State QLD Postcode 4000

Part D Evidence

1. I am the Respondent in these proceedings.
2. I agree with the background facts regarding our marriage and child.

RESPONSE TO ALLEGATIONS OF CONTROLLING BEHAVIOUR (AUGUST – OCTOBER 2025)

3. Throughout 2024 and 2025 relationship with Jill have been strained despite my best efforts to get them back on track.
4. Jill has gone to incredible lengths to insult me, for example, on 10 October 2024 Jill sent me an email with the subject 'test', presumably to make me read it.
5. The contents of the subject simply read "Go fuck yourself Joe"
6. When discussing custody from April to June 2024, Jill's behaviour was even worse, including on May 1 2024 where she explicitly threatened me "I'll make sure you regret it." If I didn't do what she said.

Signature of person making this affidavit (deponent)	Signature of witness

7. The vitriol is almost never ending:
    a) On May 5 2024 she send me an email calling me a “worthless excuse for a parent”.
    b) On May 29 2024 she blackmailed me with the threat of withdrawing child support if I did not comply with her requests.
    c) On June 20 2024 she called me a fat loser.
    d) I have more examples I can show the court of this behaviour.
8. On May 25 she withheld Johnny from his regular weekend visitation for no reason at all.
9. Most concerningly, on June 12 2024 explicitly stated she would start telling people that I abused Johnny if I did not do what she wanted me to do. Her false domestic violence claims are an extension of this blackmail.

EVENTS OF 1 NOVEMBER 2025

10. On or about 4 November 2025, Jill’s behaviour was erratic and possessive.

11. She made a comment about "girls staring at me" and needing to "fight them off." While she laughed, her tone was menacing.

12. She then financially shamed me, stating, "I don't give you cash so you can spend it on other people." Jill controls all our finances. I have to ask her for money for basic social interactions.

13. When I received a call from an old school friend, Jill exploded. She screamed obscenities.

14. I retreated to the bedroom for safety. Jill did not "knock." She hammered on the door with such force I thought the hinges would break. She was screaming, "Open the [expletive] door!" She was out of control.

RESPONSE TO ALLEGATIONS OF 3 NOVEMBER 2025

15. I vehemently deny the assault allegations.

16. The conversation alleged by Jill to have taken place on November 3, actually took place on the 1st of November. I confronted Jill about her infidelity. I had reliable information that she had been fixated on a neighbour, "Martin," who is outfitting a sailboat.

17. I asked her about it calmly. She lied to my face, saying she didn't know him.

18. I became emotional. I asked, "Does it give you that much pleasure to humiliate me?"

19. Jill began to hyperventilate and sob hysterically. She was working herself into a panic to avoid answering my questions.

20. I deny striking her with a closed fist. Any movement of my hands seen on video was me gesturing in frustration.

21. I deny choking her. Jill looked as though she was going to faint. When Jill began hyperventilating and stumbling I reached out my hands to steady her. My intention was to prevent her from falling.

22. Regarding the comment about the bread: I had spent the afternoon baking fresh bread for our dinner, trying to do something nice for the family despite our troubles.

23. When I said, "You'll pout and spoil our supper... Just smell the bread," I was trying to ground her. I was trying to de-escalate her hysteria and remind her that we had a family meal prepared.

24. Jill has manipulated this context to make a moment of domestic effort look like psychological abuse.

25. Jill's allegations of violence is an attempt to distract from her own threatening behaviour towards me during this period.

CONCLUSION

26. Jill is attempting to alienate me from Johnny to cover up her own emotional instability and infidelity.

27. I seek equal shared parental responsibility.

Part E Signature

I ☒ swear / ☐ affirm the contents of this affidavit are true

Signature of Deponent

Place Brisbane Date 20/02/2026

Before me (signature of witness)

Mr O TherLawyer
Full name of witness (please print)

☐ Justice of the Peace (JP #)
☐ Notary public
☒ Lawyer
☐ Other authorised person (specify)

This affidavit was ☒ prepared / ☐ settled by ☒ deponent/s ☐ lawyer

PRINT NAME AND LAWYER'S CODE